

Name: Simone Sepe

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 2

Corrective Justice score: 8

Distributive Justice score: 4

Formalist/Functionalism score: 2

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 9

Corrective Justice score: 2

Distributive Justice score: 3

Formalist/Functionalism score: 8

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 6

Corrective Justice score: 7

Distributive Justice score: 6

Formalist/Functionalism score: 6

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 6

Corrective Justice score: 5

Distributive Justice score: 6

Formalist/Functionalism score: 7

Case 1 comments:

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 5

Corrective Justice score: 2

Distributive Justice score: 2

Formalist/Functionalism score: 3

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 8

Corrective Justice score: 7

Distributive Justice score: 6

Formalist/Functionalism score: 7

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 2

Corrective Justice score: 8

Distributive Justice score: 6

Formalist/Functionalism score: 3

Case 2 comments:

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 6

Corrective Justice score: 8

Distributive Justice score: 7

Formalist/Functionalism score: 4

3B. So that those who lost the most wages get the most.

Efficiency score: 5

Corrective Justice score: 4

Distributive Justice score: 3

Formalist/Functionalism score: 6

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 7

Corrective Justice score: 3

Distributive Justice score: 4

Formalist/Functionalism score: 8

Case 3 comments:

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 8

Corrective Justice score: 1

Distributive Justice score: 2

Formalist/Functionalism score: 8

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 9

Corrective Justice score: 2

Distributive Justice score: 3

Formalist/Functionalism score: 7

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 1

Corrective Justice score: 9

Distributive Justice score: 4

Formalist/Functionalism score: 2

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 7

Corrective Justice score: 7

Distributive Justice score: 6

Formalist/Functionalism score: 7

Case 4 comments:

Name: Doni Bloomfield

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 2

Corrective Justice score: 6

Distributive Justice score: 1

Formalist/Functionalism score: 2

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 4

Corrective Justice score: 2

Distributive Justice score: 7

Formalist/Functionalism score: 7

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 8

Corrective Justice score: 9

Distributive Justice score: 4

Formalist/Functionalism score: 6

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 6

Corrective Justice score: 6

Distributive Justice score: 8

Formalist/Functionalism score: 8

Case 1 comments:

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 2

Corrective Justice score: 1

Distributive Justice score: 1

Formalist/Functionalism score: 8

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 9

Corrective Justice score: 9

Distributive Justice score: 9

Formalist/Functionalism score: 8

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 1

Corrective Justice score: 7

Distributive Justice score: 2

Formalist/Functionalism score: 1

Case 2 comments:

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 7

Corrective Justice score: 7

Distributive Justice score: 8

Formalist/Functionalism score: 3

3B. So that those who lost the most wages get the most.

Efficiency score: 5

Corrective Justice score: 8

Distributive Justice score: 6

Formalist/Functionalism score: 5

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 8

Corrective Justice score: 6

Distributive Justice score: 4

Formalist/Functionalism score: 8

Case 3 comments:

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 7

Corrective Justice score: 3

Distributive Justice score: 7

Formalist/Functionalism score: 9

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 9

Corrective Justice score: 4

Distributive Justice score: 8

Formalist/Functionalism score: 6

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 1

Corrective Justice score: 4

Distributive Justice score: 1

Formalist/Functionalism score: 1

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 3

Corrective Justice score: 6

Distributive Justice score: 3

Formalist/Functionalism score: 6

Case 4 comments:

Name: Mark P Gergen

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 5

Corrective Justice score: 7

Distributive Justice score: 4

Formalist/Functionalism score: 3

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 5

Corrective Justice score: 3

Distributive Justice score: 6

Formalist/Functionalism score: 7

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 5

Corrective Justice score: 8

Distributive Justice score: 8

Formalist/Functionalism score: 7

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 5

Corrective Justice score: 6

Distributive Justice score: 6

Formalist/Functionalism score: 6

Case 1 comments:

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 7

Corrective Justice score: 3

Distributive Justice score: 3

Formalist/Functionalism score: 5

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 9

Corrective Justice score: 6

Distributive Justice score: 5

Formalist/Functionalism score: 5

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 1

Corrective Justice score: 7

Distributive Justice score: 7

Formalist/Functionalism score: 5

Case 2 comments: The court should grant the injunction, delay its implementation, tell the parties to settle, and tell the parties it will review the settlement for fairness. This is what New York courts did before Boomer.

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 7

Corrective Justice score: 7

Distributive Justice score: 7

Formalist/Functionalism score: 6

3B. So that those who lost the most wages get the most.

Efficiency score: 4

Corrective Justice score: 3

Distributive Justice score: 3

Formalist/Functionalism score: 4

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 8

Corrective Justice score: 3

Distributive Justice score: 3

Formalist/Functionalism score: 6

Case 3 comments:

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 9

Corrective Justice score: 5

Distributive Justice score: 7

Formalist/Functionalist score: 7

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 9

Corrective Justice score: 7

Distributive Justice score: 7

Formalist/Functionalist score: 3

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 1

Corrective Justice score: 3

Distributive Justice score: 3

Formalist/Functionalist score: 1

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 6

Corrective Justice score: 4

Distributive Justice score: 4

Formalist/Functionalist score: 4

Case 4 comments:

Name: Robert Scott

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 9

Corrective Justice score: 7

Distributive Justice score: 2

Formalist/Functionalism score: 5

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 1

Corrective Justice score: 3

Distributive Justice score: 7

Formalist/Functionalism score: 7

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 1

Corrective Justice score: 8

Distributive Justice score: 8

Formalist/Functionalism score: 8

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 6

Corrective Justice score: 7

Distributive Justice score: 8

Formalist/Functionalism score: 8

Case 1 comments: No

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 1

Corrective Justice score: 1

Distributive Justice score: 1

Formalist/Functionalism score: 1

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 9

Corrective Justice score: 7

Distributive Justice score: 8

Formalist/Functionalism score: 5

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 3

Corrective Justice score: 7

Distributive Justice score: 4

Formalist/Functionalism score: 2

Case 2 comments: No

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 7

Corrective Justice score: 7

Distributive Justice score: 5

Formalist/Functionalism score: 6

3B. So that those who lost the most wages get the most.

Efficiency score: 7

Corrective Justice score: 5

Distributive Justice score: 5

Formalist/Functionalism score: 8

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 5

Corrective Justice score: 2

Distributive Justice score: 2

Formalist/Functionalism score: 9

Case 3 comments: No

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 2

Corrective Justice score: 1

Distributive Justice score: 1

Formalist/Functionalism score: 9

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 8

Corrective Justice score: 3

Distributive Justice score: 3

Formalist/Functionalism score: 8

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 1

Corrective Justice score: 1

Distributive Justice score: 1

Formalist/Functionalism score: 2

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 8

Corrective Justice score: 8

Distributive Justice score: 8

Formalist/Functionalism score: 7

Case 4 comments: No

Name: Henry Smith

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 3

Corrective Justice score: 6

Distributive Justice score: 4

Formalist/Functionalism score: 5

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 6

Corrective Justice score: 2

Distributive Justice score: 3

Formalist/Functionalism score: 5

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 2

Corrective Justice score: 6

Distributive Justice score: 6

Formalist/Functionalism score: 7

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 7

Corrective Justice score: 4

Distributive Justice score: 6

Formalist/Functionalism score: 5

Case 1 comments:

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 2

Corrective Justice score: 2

Distributive Justice score: 6

Formalist/Functionalism score: 6

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 7

Corrective Justice score: 6

Distributive Justice score: 4

Formalist/Functionalism score: 4

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 6

Corrective Justice score: 6

Distributive Justice score: 3

Formalist/Functionalism score: 2

Case 2 comments:

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 6

Corrective Justice score: 6

Distributive Justice score: 6

Formalist/Functionalism score: 7

3B. So that those who lost the most wages get the most.

Efficiency score: 7

Corrective Justice score: 4

Distributive Justice score: 3

Formalist/Functionalism score: 3

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 7

Corrective Justice score: 3

Distributive Justice score: 3

Formalist/Functionalism score: 7

Case 3 comments:

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 2

Corrective Justice score: 2

Distributive Justice score: 6

Formalist/Functionalism score: 8

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 3

Corrective Justice score: 3

Distributive Justice score: 6

Formalist/Functionalism score: 4

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 4

Corrective Justice score: 4

Distributive Justice score: 6

Formalist/Functionalism score: 3

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 7

Corrective Justice score: 6

Distributive Justice score: 6

Formalist/Functionalism score: 6

Case 4 comments:

Name: Ela Leshem

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 1

Corrective Justice score: 9

Distributive Justice score: 5

Formalist/Functionalism score: 1

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 9

Corrective Justice score: 1

Distributive Justice score: 3

Formalist/Functionalism score: 9

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 7

Corrective Justice score: 7

Distributive Justice score: 8

Formalist/Functionalism score: 7

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 8

Corrective Justice score: 3

Distributive Justice score: 4

Formalist/Functionalism score: 7

Case 1 comments:

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 6

Corrective Justice score: 1

Distributive Justice score: 2

Formalist/Functionalism score: 3

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 9

Corrective Justice score: 7

Distributive Justice score: 8

Formalist/Functionalism score: 8

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 1

Corrective Justice score: 9

Distributive Justice score: 3

Formalist/Functionalism score: 2

Case 2 comments:

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 6

Corrective Justice score: 8

Distributive Justice score: 7

Formalist/Functionalism score: 6

3B. So that those who lost the most wages get the most.

Efficiency score: 5

Corrective Justice score: 4

Distributive Justice score: 2

Formalist/Functionalism score: 8

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 3

Corrective Justice score: 3

Distributive Justice score: 2

Formalist/Functionalism score: 9

Case 3 comments:

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 3

Corrective Justice score: 1

Distributive Justice score: 2

Formalist/Functionalism score: 9

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 4

Corrective Justice score: 2

Distributive Justice score: 2

Formalist/Functionalism score: 6

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 4

Corrective Justice score: 9

Distributive Justice score: 6

Formalist/Functionalism score: 1

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 8

Corrective Justice score: 7

Distributive Justice score: 8

Formalist/Functionalism score: 5

Case 4 comments:

Name: Noah Zatz

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 3

Corrective Justice score: 7

Distributive Justice score: 5

Formalist/Functionalism score: 3

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 3

Corrective Justice score: 1

Distributive Justice score: 5

Formalist/Functionalism score: 1

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 8

Corrective Justice score: 7

Distributive Justice score: 5

Formalist/Functionalism score: 7

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 5

Corrective Justice score: 5

Distributive Justice score: 5

Formalist/Functionalism score: 5

Case 1 comments: I think in 1B you "market value" where it says "the value of the house as it is". Why no specific performance option?

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 5

Corrective Justice score: 3

Distributive Justice score: 3

Formalist/Functionalism score: 1

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 7

Corrective Justice score: 8

Distributive Justice score: 7

Formalist/Functionalism score: 7

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 7

Corrective Justice score: 5

Distributive Justice score: 7

Formalist/Functionalism score: 3

Case 2 comments:

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 5

Corrective Justice score: 8

Distributive Justice score: 6

Formalist/Functionalism score: 5

3B. So that those who lost the most wages get the most.

Efficiency score: 5

Corrective Justice score: 5

Distributive Justice score: 6

Formalist/Functionalism score: 4

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 5

Corrective Justice score: 3

Distributive Justice score: 3

Formalist/Functionalism score: 3

Case 3 comments:

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 6

Corrective Justice score: 2

Distributive Justice score: 5

Formalist/Functionalism score: 5

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 8

Corrective Justice score: 7

Distributive Justice score: 5

Formalist/Functionalism score: 5

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 4

Corrective Justice score: 2

Distributive Justice score: 5

Formalist/Functionalism score: 2

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 5

Corrective Justice score: 2

Distributive Justice score: 5

Formalist/Functionalism score: 1

Case 4 comments:

Name: Luke Herrine

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 2

Corrective Justice score: 7

Distributive Justice score: 4

Formalist/Functionalism score: 4

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 6

Corrective Justice score: 2

Distributive Justice score: 5

Formalist/Functionalism score: 9

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 1

Corrective Justice score: 8

Distributive Justice score: 5

Formalist/Functionalism score: 2

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 8

Corrective Justice score: 6

Distributive Justice score: 5

Formalist/Functionalism score: 5

Case 1 comments: There are cross-cutting ways of thinking about the most "efficient" outcome in this case. One wants to disincentivize breach and to incentivize the parties to bargain to their own measure of damages. One also wants to reduce the cost of remediation and to prevent misuse of resources while preserving idiosyncratic valuation of the plaintiff. How those balance out is difficult to analyze in the abstract.

Corrective justice has similar underdetermination issues, since the value of the performance created by the contract is different for each party

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 3

Corrective Justice score: 2

Distributive Justice score: 1

Formalist/Functionalism score: 7

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 6

Corrective Justice score: 8

Distributive Justice score: 7

Formalist/Functionalism score: 5

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 8

Corrective Justice score: 8

Distributive Justice score: 9

Formalist/Functionalism score: 5

Case 2 comments:

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 2

Corrective Justice score: 8

Distributive Justice score: 6

Formalist/Functionalism score: 5

3B. So that those who lost the most wages get the most.

Efficiency score: 6

Corrective Justice score: 7

Distributive Justice score: 2

Formalist/Functionalism score: 5

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 6

Corrective Justice score: 2

Distributive Justice score: 5

Formalist/Functionalism score: 9

Case 3 comments: I don't have as strong intuitions/knowledge about how to think about the distribution of a remedy after bankruptcy, since incentive effects are unclear to me and I'd think corrective justice principles cut multiple ways

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 4

Corrective Justice score: 1

Distributive Justice score: 5

Formalist/Functionalism score: 9

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 6

Corrective Justice score: 6

Distributive Justice score: 5

Formalist/Functionalism score: 4

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 7

Corrective Justice score: 7

Distributive Justice score: 5

Formalist/Functionalism score: 4

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 8

Corrective Justice score: 4

Distributive Justice score: 5

Formalist/Functionalism score: 7

Case 4 comments:

Name: Ethan Leib

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 1

Corrective Justice score: 9

Distributive Justice score: 5

Formalist/Functionalism score: 1

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 9

Corrective Justice score: 1

Distributive Justice score: 5

Formalist/Functionalism score: 9

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 1

Corrective Justice score: 6

Distributive Justice score: 5

Formalist/Functionalism score: 5

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 9

Corrective Justice score: 9

Distributive Justice score: 9

Formalist/Functionalism score: 5

Case 1 comments:

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 9

Corrective Justice score: 1

Distributive Justice score: 5

Formalist/Functionalism score: 9

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 7

Corrective Justice score: 9

Distributive Justice score: 5

Formalist/Functionalism score: 7

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 1

Corrective Justice score: 5

Distributive Justice score: 5

Formalist/Functionalism score: 1

Case 2 comments:

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 8

Corrective Justice score: 9

Distributive Justice score: 9

Formalist/Functionalism score: 5

3B. So that those who lost the most wages get the most.

Efficiency score: 5

Corrective Justice score: 7

Distributive Justice score: 7

Formalist/Functionalism score: 1

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 5

Corrective Justice score: 1

Distributive Justice score: 1

Formalist/Functionalism score: 1

Case 3 comments:

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 9

Corrective Justice score: 1

Distributive Justice score: 5

Formalist/Functionalism score: 9

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 9

Corrective Justice score: 7

Distributive Justice score: 5

Formalist/Functionalism score: 1

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 1

Corrective Justice score: 6

Distributive Justice score: 4

Formalist/Functionalism score: 1

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 9

Corrective Justice score: 7

Distributive Justice score: 9

Formalist/Functionalism score: 7

Case 4 comments:

Name: Florencia Marotta-Wurgler

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 2

Corrective Justice score: 7

Distributive Justice score: 3

Formalist/Functionalism score: 1

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 6

Corrective Justice score: 2

Distributive Justice score: 6

Formalist/Functionalism score: 9

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 6

Corrective Justice score: 6

Distributive Justice score: 8

Formalist/Functionalism score: 6

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 3

Corrective Justice score: 7

Distributive Justice score: 7

Formalist/Functionalism score: 6

Case 1 comments: I wasn't clear on whether the imported, visually identical, wood that was used instead of the contractually specified wood would have achieved any degree of the home owner's goal of having the "new house reflect his roots." If the owner's intent was for the wood used to create a visible reflection of his roots, then the alternative wood would have contributed a non-zero amount towards that goal. If, on the contrary, the **only** way to achieve the goals and desires of the owner was to use his local village roots and the value of that **to him** was at least as large as the cost of replacement, then that would affect my determination of the efficiency of the remedy, etc, since it should consider subjective value. Similarly, I had to make assumptions about the relative financial position of the builder and the owner when making

determinations regarding the distributive effects. My answers reflect some reasonable assumptions I made regarding these factors. Some would change with different information.

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 7

Corrective Justice score: 2

Distributive Justice score: 3

Formalist/Functionalism score: 9

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 9

Corrective Justice score: 7

Distributive Justice score: 6

Formalist/Functionalism score: 7

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 1

Corrective Justice score: 7

Distributive Justice score: 3

Formalist/Functionalism score: 1

Case 2 comments:

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 5

Corrective Justice score: 8

Distributive Justice score: 6

Formalist/Functionalism score: 3

3B. So that those who lost the most wages get the most.

Efficiency score: 7

Corrective Justice score: 5

Distributive Justice score: 3

Formalist/Functionalism score: 8

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 6

Corrective Justice score: 3

Distributive Justice score: 4

Formalist/Functionalism score: 9

Case 3 comments: It would have helped to answer these questions with more information about these factors: (1) the amount of available funds relative to the collective loss suffered --including pecuniary and non-pecuniary losses, as well as and restorative medical procedures costs; (2) the actual losses of each individual (medical, loss of wages, loss in quality of life, other non-pecuniary losses) as well as their wealth, injuries suffered, and ability to recover, etc. My answers reflect the absence of this information.

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 7

Corrective Justice score: 1

Distributive Justice score: 5

Formalist/Functionalism score: 9

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 8

Corrective Justice score: 2

Distributive Justice score: 4

Formalist/Functionalism score: 9

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 1

Corrective Justice score: 6

Distributive Justice score: 2

Formalist/Functionalism score: 1

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 7

Corrective Justice score: 8

Distributive Justice score: 6

Formalist/Functionalist score: 6

Case 4 comments:

Name: Prince Saprai

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 3

Corrective Justice score: 3

Distributive Justice score: 2

Formalist/Functionalism score: 7

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 7

Corrective Justice score: 7

Distributive Justice score: 7

Formalist/Functionalism score: 7

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 8

Corrective Justice score: 8

Distributive Justice score: 8

Formalist/Functionalism score: 8

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 6

Corrective Justice score: 6

Distributive Justice score: 6

Formalist/Functionalism score: 8

Case 1 comments: I was not sure what achieving distributive justice meant in this context but applied the original position test to arrive at an answer. I was also not sure I follow the distinction between formalist and functionalist approaches.

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 7

Corrective Justice score: 3

Distributive Justice score: 4

Formalist/Functionalist score: 7

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 8

Corrective Justice score: 7

Distributive Justice score: 7

Formalist/Functionalist score: 7

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 2

Corrective Justice score: 6

Distributive Justice score: 6

Formalist/Functionalist score: 6

Case 2 comments:

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 6

Corrective Justice score: 8

Distributive Justice score: 8

Formalist/Functionalist score: 5

3B. So that those who lost the most wages get the most.

Efficiency score: 7

Corrective Justice score: 7

Distributive Justice score: 4

Formalist/Functionalist score: 7

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 4

Corrective Justice score: 7

Distributive Justice score: 6

Formalist/Functionalist score: 4

Case 3 comments:

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 7

Corrective Justice score: 3

Distributive Justice score: 4

Formalist/Functionalism score: 7

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 8

Corrective Justice score: 7

Distributive Justice score: 7

Formalist/Functionalism score: 7

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 1

Corrective Justice score: 2

Distributive Justice score: 2

Formalist/Functionalism score: 2

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 9

Corrective Justice score: 8

Distributive Justice score: 8

Formalist/Functionalism score: 8

Case 4 comments:

Name: Rebecca Stone

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 8

Corrective Justice score: 6

Distributive Justice score: 3

Formalist/Functionalism score: 3

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 2

Corrective Justice score: 3

Distributive Justice score: 6

Formalist/Functionalism score: 5

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 6

Corrective Justice score: 6

Distributive Justice score: 1

Formalist/Functionalism score: 8

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 3

Corrective Justice score: 4

Distributive Justice score: 8

Formalist/Functionalism score: 6

Case 1 comments: I'm a bit stuck on the degree of formalism question as that seems to me a function in part of how cases like this one will get decided as opposed to a ruling in a particular case. Also with efficiency I assume we are evaluating this as if this is the rule going forward though again that will depend on how other cases in the neighborhood of this one get decided.

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 6

Corrective Justice score: 1

Distributive Justice score: 1

Formalist/Functionalism score: 8

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 8

Corrective Justice score: 7

Distributive Justice score: 7

Formalist/Functionalism score: 7

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 6

Corrective Justice score: 9

Distributive Justice score: 7

Formalist/Functionalism score: 2

Case 2 comments: Similar comments as those made to Q1 though I found this question a bit easier to react to (not sure why!)

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 7

Corrective Justice score: 6

Distributive Justice score: 5

Formalist/Functionalism score: 5

3B. So that those who lost the most wages get the most.

Efficiency score: 7

Corrective Justice score: 5

Distributive Justice score: 3

Formalist/Functionalism score: 5

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 7

Corrective Justice score: 3

Distributive Justice score: 1

Formalist/Functionalism score: 5

Case 3 comments: Similar to my comments on Q1. I was particularly unsure how to answer the formalism question for this question.

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 4

Corrective Justice score: 4

Distributive Justice score: 4

Formalist/Functionalism score: 7

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 6

Corrective Justice score: 6

Distributive Justice score: 5

Formalist/Functionalism score: 2

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 4

Corrective Justice score: 6

Distributive Justice score: 3

Formalist/Functionalism score: 2

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 7

Corrective Justice score: 6

Distributive Justice score: 6

Formalist/Functionalism score: 5

Case 4 comments: Similar comments to my answer to q1. Here I found the distributive justice question hard as we know so little about the relative positions of those affected. I also worry that my answers to all questions about corrective and distributive justice may be influenced by my idiosyncratic theoretical views! But I suppose that's why you seek the input of multiple experts!

Name: Irit Samet

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 5

Corrective Justice score: 3

Distributive Justice score: 2

Formalist/Functionalism score: 1

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 3

Corrective Justice score: 3

Distributive Justice score: 3

Formalist/Functionalism score: 5

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 8

Corrective Justice score: 8

Distributive Justice score: 8

Formalist/Functionalism score: 6

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 2

Corrective Justice score: 2

Distributive Justice score: 2

Formalist/Functionalism score: 7

Case 1 comments: I assume that the rule 'if a party made a sincere mistake and they did all they can reasonably be expected to do to avoid it (and can prove it, of course) can quickly establish a clear norm that prospective parties can take into account when drafting agreements. I am not sure whether my answers to 1D conveyed how dissatisfying I find this solution on all metrics.

I think that the 'best guess' reference in 1C is unnecessarily judgmental, and that a more neutral language of 'court discretion' would be better; I am not sure how this is different from the many other cases where the court is asked to assess emotional/psychological harm.

I think that 1D can (should) be combined with other remedies. in that sense the exercise is

artificial, as I believe that the court is able to combine more than one remedy (or maybe 1D can be argued separately on unjust enrichment grounds).

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 5

Corrective Justice score: 1

Distributive Justice score: 4

Formalist/Functionalism score: 9

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 5

Corrective Justice score: 8

Distributive Justice score: 8

Formalist/Functionalism score: 8

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 2

Corrective Justice score: 5

Distributive Justice score: 1

Formalist/Functionalism score: 1

Case 2 comments: One piece of info that is sorely missed is whether there are means to protect the tomatoes from the dust, and how expensive these will be.

For this scenario I did not know what to answer on the 'efficiency' rate of the remedies: this is a variation on Coase's train/field case, and since it seems like a case of low transaction costs, the rule should not have much of effect on the overall efficiency; on the other hand if property rights can be dramatically effected in that way that may have effect on how owners conduct themselves in the market. Yet, this is not possible to calculate on the basis of the info provided (or at all).

The latter consideration also made it complicated to rate the remedies for distributive justice, even when it's clear that allowing the cement plant to continue its activity will be beneficial to the community.

For 2C I rated the efficiency as low as it may open the door to a holdup problem

It would help if we knew what are the prospects of state taking.

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 5

Corrective Justice score: 5

Distributive Justice score: 8

Formalist/Functionalist score: 5

3B. So that those who lost the most wages get the most.

Efficiency score: 5

Corrective Justice score: 5

Distributive Justice score: 3

Formalist/Functionalist score: 3

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 7

Corrective Justice score: 5

Distributive Justice score: 5

Formalist/Functionalist score: 5

Case 3 comments: Because the agent who engaged in the risk making activity is not in business any more, I wasn't sure what exactly is the legal rule the judges are asked to set. so for 3A will it be a general rule that the greater the harm , the greater the compensation? or is it a more specific one on how to distribute the trust fund among potential beneficiaries when there is not enough money in it to do justice to everyone? if it's the latter (which it seems to be) , I found it difficult to rate it for efficiency (who is being incentivised to do what?).

Same for corrective justice, if it's the latter, it is a competition between innocents.

For 3C, I am not sure what is suggested. If we have two victims, one can be made to walk again, and the other cannot, but he needs adjustments to the house to make his life bearable. does the proposal say that if we only have enough money to make one walk we should leave the disabled person with no support at all? I don't know how to answer this question.

I am generally quite at lost about this question, sorry.

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 2

Corrective Justice score: 2

Distributive Justice score: 2

Formalist/Functionalism score: 9

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 3

Corrective Justice score: 3

Distributive Justice score: 4

Formalist/Functionalism score: 7

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 2

Corrective Justice score: 2

Distributive Justice score: 3

Formalist/Functionalism score: 1

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 7

Corrective Justice score: 8

Distributive Justice score: 8

Formalist/Functionalism score: 7

Case 4 comments: I assume that since the developer knew about the encroachment it is not a case of proprietary estoppel .

4D ideally this remedy should be fortified with a remedy that will disincentivise owners from taking the chance that they will be found out (as they lose nothing if they decide to go ahead when finding the mistake), so maybe something like punitive damages? although maybe the risk that the neighbour will be able to prove some damage should be enough to dissuade most owners from going ahead after finding out the mistake.

Name: Hao Jiang

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 1

Corrective Justice score: 1

Distributive Justice score: 1

Formalist/Functionalism score: 9

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 5

Corrective Justice score: 9

Distributive Justice score: 5

Formalist/Functionalism score: 9

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 5

Corrective Justice score: 5

Distributive Justice score: 5

Formalist/Functionalism score: 5

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 9

Corrective Justice score: 9

Distributive Justice score: 5

Formalist/Functionalism score: 9

Case 1 comments: I feel that this case could come out either like *Ruxley* or *City School District v. McLane*. It depends on whether the house looks visibly different than promised. If the house looks (substantially) different, it should look like *McLane*. If not, probably more like *Ruxley*. Still it will depend on whether the contractor was compensated for the risk imposed by the plaintiff's extra-sensitivity if the wood they used looks exactly the same and cost the same and will be accepted by any other reasonable clients. In that sense, it concerns commutative justice, which in turn comes down to fair risk compensation. If the delivered house was a different product than promised, replacement cost should be allowed. If the delivered house was essentially the same product with the same market value, it depends on whether the defendant was compensated

enough to bear with the sensitivity. Loss of amenity might be a middle ground but it is not a sound remedy theoretically.

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 9

Corrective Justice score: 1

Distributive Justice score: 1

Formalist/Functionalism score: 9

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 9

Corrective Justice score: 9

Distributive Justice score: 5

Formalist/Functionalism score: 9

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 1

Corrective Justice score: 1

Distributive Justice score: 9

Formalist/Functionalism score: 1

Case 2 comments:

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 7

Corrective Justice score: 5

Distributive Justice score: 5

Formalist/Functionalism score: 7

3B. So that those who lost the most wages get the most.

Efficiency score: 5

Corrective Justice score: 8

Distributive Justice score: 5

Formalist/Functionalism score: 6

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 9

Corrective Justice score: 5

Distributive Justice score: 5

Formalist/Functionalism score: 5

Case 3 comments:

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 9

Corrective Justice score: 1

Distributive Justice score: 5

Formalist/Functionalism score: 9

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 9

Corrective Justice score: 9

Distributive Justice score: 5

Formalist/Functionalism score: 9

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 1

Corrective Justice score: 1

Distributive Justice score: 5

Formalist/Functionalism score: 6

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 9

Corrective Justice score: 9

Distributive Justice score: 5

Formalist/Functionalism score: 8

Case 4 comments:

Name: Gabriel Rauterberg

Case 1: The Shangla Wood Dispute

1A. The total cost to knock down the house and build a new one with wood from the Shangla District

Efficiency score: 3

Corrective Justice score: 8

Distributive Justice score: 5

Formalist/Functionalism score: 5

1B. The difference between the value of the house as it is and what it would have been worth had it been made with Shangla wood, which is zero.

Efficiency score: 7

Corrective Justice score: 2

Distributive Justice score: 5

Formalist/Functionalism score: 8

1C. The court's best guess of how much money it would take to compensate the businessman for his disappointment at not having a house made with Shangla wood.

Efficiency score: 6

Corrective Justice score: 7

Distributive Justice score: 5

Formalist/Functionalism score: 7

1D. The money saved by the builder for using imported wood instead of Shangla wood.

Efficiency score: 7

Corrective Justice score: 2

Distributive Justice score: 5

Formalist/Functionalism score: 7

Case 1 comments: Making the plaintiff a businessman seems to me to almost neutralize a sense of clear distributive justice, given the question of the incidence of any costs to the business

Case 2: The Cement Factory Dispute

2A. The cement factory does not constitute a nuisance.

Efficiency score: 3

Corrective Justice score: 1

Distributive Justice score: 3

Formalist/Functionalist score: 7

2B. The cement factory constitutes a nuisance, and the remedy is damages for the economic loss that the dust imposes on the farm-owners.

Efficiency score: 7

Corrective Justice score: 7

Distributive Justice score: 7

Formalist/Functionalist score: 5

2C. The cement factory constitutes a nuisance, and there is an injunction halting the factory's operation.

Efficiency score: 5

Corrective Justice score: 6

Distributive Justice score: 6

Formalist/Functionalist score: 5

Case 2 comments:

Case 3: The Bus Crash Compensation Case

3A. So that those who have the most serious medical injury get the most.

Efficiency score: 7

Corrective Justice score: 8

Distributive Justice score: 7

Formalist/Functionalist score: 7

3B. So that those who lost the most wages get the most.

Efficiency score: 7

Corrective Justice score: 3

Distributive Justice score: 3

Formalist/Functionalist score: 7

3C. So that those whose injuries can be cured by expensive medical care get more compensation than those whose injuries are incurable.

Efficiency score: 7

Corrective Justice score: 5

Distributive Justice score: 5

Formalist/Functionalist score: 7

Case 3 comments:

Case 4: Proportionality in Trespass

4A. The developer did not commit a trespass.

Efficiency score: 7

Corrective Justice score: 4

Distributive Justice score: 4

Formalist/Functionalism score: 7

4B. The developer committed a trespass, and the remedy is the reduction in the value of the mall and its parking lot, which is zero.

Efficiency score: 9

Corrective Justice score: 7

Distributive Justice score: 4

Formalist/Functionalism score: 7

4C. The developer committed a trespass, and the remedy is an injunction to tear down the office tower and move it to eliminate the encroachment.

Efficiency score: 1

Corrective Justice score: 3

Distributive Justice score: 4

Formalist/Functionalism score: 3

4D. The developer committed a trespass, and the remedy is disgorgement of the construction costs saved by the decision to build rather than redesigning the building and getting renewed planning permission.

Efficiency score: 3

Corrective Justice score: 3

Distributive Justice score: 5

Formalist/Functionalism score: 4

Case 4 comments: